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The Duty to Love is a Collective Responsibility

Children have a fundamental right to be loved. As philosopher Matthew Liao argues, love is a “fundamental condition for children to pursue a good life, that is, children need to be loved in order to develop the fundamental capacities necessary for pursuing the basic activities” (Liao, Fundamental Condition 74). Psychological and biological research further supports this claim, showing that love fosters emotional stability, cognitive growth, and trust, all of which are capacities essential for a child’s development (Liao, Fundamental Condition 75). Philosopher Anca Gheaus further notes that children’s developmental vulnerabilities create a unique obligation to provide consistent and affirming care (Gheaus, Childhood 6). To love a child, according to Liao, involves seeking

“a highly intense interaction with the child, where one values the child for the child’s sake, seeks to bring about and maintain physical and psychological proximity with the child, seeks to promote the child’s well-being for the child’s sake, and desires that the child reciprocate or, at least, respond to, one’s love” (Liao, Fundamental Condition 76).

He argues that love is not a necessity, it is a universal moral right. However, the execution of this assumption raises important questions about who is best suited to provide this love, as well as how responsibility should be distributed in ways that maximize the child’s well-being. This paper critiques Liao’s argument that biological parents are the default duty bearers, arguing instead that the obligation to provide love extends to the broader community. While Liao’s framework for

assigning responsibility is robust, his conclusion that biological parents are the default primary duty bearers is flawed. Instead, the responsibility should extend to the broader community, which is better equipped to meet children's needs.

I. Liao's Framework: Defining the Duty to Love

Liao provides a compelling framework for determining who bears the responsibility of fulfilling a child's right to be loved. He identifies four key factors: responsibility, proximity, ability, and motivation (Liao, *Duty to Love* 135). Biological parents, he argues, naturally fulfill at least three of these criteria.

First, Liao grounds responsibility in causality, arguing that the biological parents' role in creating the child establishes a direct link to their moral obligations. He explains, "biological parents should incur some responsibility as a result of causing a child to come into existence" (Liao, *Duty to Love* 132). This perspective aligns with the *causal account of parenthood* which holds that causing a child to exist entails moral responsibility for their well-being and thus generates an obligation (Brake, *Willing Parents* 158). Importantly, he resists the claim that biological parents alone bear the duty to love, and emphasizes that secondary associative duties to love the child must also exist (Liao, *Duty to Love* 132). He asserts, "The duty to love a child is always present for everyone," emphasizing that capable individuals have a secondary duty to assist primary dutybearers or to assume responsibility if the biological parents are unavailable (Liao, *Duty to Love* 142).

Second, he argues that proximity, a physical and emotional closeness, also most often aligns with biological parenthood. Biological parents are typically the most physically present figures in a child's life, so they garner intimate knowledge of the child's needs (Liao, *Duty to*

Love 136). Moreover, parents are well positioned to care for children because their bonds of affection and direct interest in the child's welfare ensure consistent care, even in challenging circumstances (Liao Duty to Love 136).

Third, Liao includes ability as a critical factor, defined as the capability to meet a child's physical, emotional, and psychological needs. He acknowledges that biological parents do not always possess the requisite capabilities to meet all of a child's needs, but that such abilities can be developed through education and resources, reinforcing the adaptability of his framework (Liao, Duty to Love 137). The inclusion of ability in the framework is particularly important, as it emphasizes that the duty to love a child cannot be fulfilled without the capacity to meet the child's needs. This makes the framework adaptable, as it acknowledges that if biological parents lack proximity, ability, or motivation, others may be better positioned to take on the duty.

Lastly, Liao discusses motivation, which he associates with the emotional and biological connections inherent in parent-child relationships. He highlights that this natural bond typically inspires biological parents to act in the child's best interests (Liao, Fundamental Condition 76). This motivational element supports Liao's broader claim that the duty to love is best discharged by individuals who have a vested emotional interest in the child, namely, the child's biological parents.

II. Communal Parenting Better Fulfills the Duty to Love

While Liao's framework is robust and intuitive, his conclusion that biological parents should remain the primary duty bearers relies heavily on the presumption that these four factors are most often fulfilled by them. This assumption warrants closer examination, especially given the complexities of modern family structures and societal systems that may better align with

these factors. A community-oriented model, which distributes caregiving responsibilities across multiple individuals, often aligns more effectively with Liao's criteria, demonstrating that the duty to love need not be confined to biological parents.

A. The Limits of Causal Responsibility

Liao claims that responsibility to care for and love a child stems from a causal link. To support this view, he uses the analogy of a person drowning: if someone pushes another person into a river, they bear a duty to save them. However, others may also share this duty if they are better positioned to help (Liao, *Duty to Love* 133). While this may seem intuitive, this analogy is weak when applied to long-term parental obligations. Saving a drowning person is a one-time action, while loving a child requires ongoing relational commitment and capacity.

Tommie Shelby critiques the approach as resembling a "torts model" of parental responsibility, where causing a vulnerable child to exist makes one liable for their defenseless state and imposes long-term special duties of care beyond general mutual aid (Shelby 156). However, Shelby distinguishes between causal responsibility and moral responsibility, noting that the former does not inherently entail the latter. While some causes are evident, they may not always qualify as *morally* relevant causes (Shelby 157). Shelby uses an example of a father who takes every possible precaution to avoid having a child but whose partner (assuming fair access to abortion) chooses to carry the pregnancy to term. The father, in this case, is causally responsible for the child's existence but not necessarily morally responsible for the child's care (Shelby 157). Shelby's analysis highlights the need to distinguish between attribution responsibility, which causes an event, and substantive responsibility, which entails the ongoing duty to respond (Shelby 156).

Brake builds on this critique by emphasizing that parental obligations must be voluntarily assumed rather than automatically conferred by causation. She argues the broader principle that “we should not be held morally responsible for all the known possible consequences of our actions” (Brake, *Fatherhood* 59). For Brake, taking reasonable precautions to avoid undesirable outcomes absolves one of moral blame when those outcomes occur. She notes, “Causal responsibility should not be confused with moral responsibility, nor moral responsibility with an obligation to bear all costs of one’s actions.” (Brake, *Fatherhood* 59). Brake illustrates this distinction through the example of a truck driver who accidentally injures a pedestrian. While causally responsible for the pedestrian’s medical needs, the driver is not obligated to bear all the long-term costs of their recovery. Similarly, a pregnant woman is causally responsible for the fetus’s existence but not necessarily its neediness (Brake, *Fatherhood* 60).

Moreover, the causal account fails to consider alternative family structures. Brake observes that in matrilineal societies or extended-family models, caregiving is often distributed among kin rather than solely the biological parents. By considering responsibility as causally linked to procreation, Liao’s account reflects Western nuclear-family practices rather than universal moral principles (Brake, *Willing Parents* 167).

This brings us to a better, more inclusive form of responsibility—*communal responsibility*. The obligation to love a child need not stem from causation. Instead, a more effective and morally grounded form of responsibility arises from a collective commitment within a community. hooks highlights that “Parenting as a communal act ensures that children experience love and care as a shared societal responsibility” (hooks 134). A communal caregiving model broadens responsibility in the caregiving process.

B. Proximity Beyond the Nuclear Family

Proximity as a criterion in Liao's framework also raises concerns when used to prioritize biological parents. The proximity of biological parents is neither universal nor sufficient to guarantee a child's well-being. To say otherwise risks conflating physical presence with caregiving quality and overlooks the benefits of broader caregiving networks.

Brake proposes that we reimagine parents "not as procreators, but as a network of interested adults and family friends who coordinate care for a child" (Brake, *Willing Parents* 177). Caregiving responsibilities can be distributed across multiple individuals and institutions, such as well-staffed daycares, schools, and community centers, ensuring reliable and continuous care (Gheaus, *Domination* 763).

When caregiving duties are shared among a network, no single individual has excessive control over the child. As Gheaus explains, "Once children have access to several independent sources of essential care, they also acquire the means to effectively contest their parents' decisions – when care at home fails, they can turn to another adult whom they know well and who cares for them" (Gheaus, *Domination* 759). Such approaches provide safety nets that allow children to seek alternative sources of support when primary care fails. She further notes that "Parents' right to prevent or sever children's relationships with other potential caregivers – a former nanny, educator, teacher, neighbour or friend – is... the parental right most inimical to minimising children's domination" (Gheaus, *Domination* 756). In communal settings, children form intimate and beneficial attachments with multiple adults, demonstrating that caregiving does not require exclusivity (Gheaus, *Domination* 761). By broadening the network of caregiving, communal models not only fulfill Liao's criterion of proximity but also surpass it, creating a more secure, resilient, and nurturing environment for children.

C. Shared Ability

The criterion of ability is underemphasized in its importance and application in Liao's framework. One critique of the claim that children have a right to be loved is the "problem of scarce resources," a challenge Wellman articulates as the difficulty of distributing caregiving obligations when resources are finite. As Wellman explains, "If the claim-right [to sustain life] is really a universal human right, then each potential duty-bearer finds himself or herself confronted with vast numbers of claimants, all of whose lives require sustenance" (Wellman as cited in Liao, *Duty to Love* 148). In this view, caregiving obligations must remain limited, as no single individual, organization, or state can meet the demands of all possible claimants. Liao challenges this by arguing that one can have "partial duties," meaning that although individuals may not have enough resources to sustain all lives, they may be able to sustain some lives, thereby obligating them to act within their means (Liao, *Duty to Love* 149).

A communal caregiving model directly addresses the problem of scarce resources by distributing the burden of caregiving obligations across a broader network. Recognizing that no individual can always provide care, communal systems share responsibilities among willing and capable individuals. Relying solely on biological parents overlooks scenarios where the broader community may collectively be better equipped to meet a child's needs. Gheaus specifically critiques the privatized model of caregiving, arguing that communal caregiving enhances the overall capacity to provide care (Gheaus, *Childhood* 6). Unlike the nuclear family model, which concentrates caregiving within a single household, communal approaches pool resources, skills, and time, heightening the overall capacity to ensure children are loved.

Moreover, the ability to provide consistent and meaningful love requires the practical skills and resources necessary for nurturing a child's well-being. As Lucia Valeska pointed out in her essay, *If All Else Fails, I'm Still a Mother*, community support is crucial particularly in marginalized communities where resources are scarce: "there are hundreds of thousands of children and mothers who desperately need individual and community support" (Valeska, as cited by hooks 145). By embedding competency within a collective structure, caregiving becomes a shared responsibility. Reintroducing competency and capacity into Liao's framework strengthens the argument for shared responsibility, aligning practical caregiving with the fundamental right to be loved.

D. Collective Motivation

Motivation, while often presumed to be strongest in biological parents, is neither exclusive to them nor necessarily sufficient to guarantee the consistent love and care that children require. While the current system is built on the assumption that biological parents are inherently the most motivated caregivers, this belief can lead to vulnerabilities when motivation is not coupled with accountability or the capacity to care effectively. hooks critiques this contemporary mindset, noting that shared caregiving "cannot happen in those settings if parents regard children as their 'property,' their 'possession.'" (hooks 144). For communal caregiving to succeed, parents must accept the involvement of others in parental-type roles.

A potential critique of the communal caregiving model is that parents may feel uncomfortable with a system that redistributes aspects of their caregiving responsibilities. However, if the true motivation is to keep children safe, then privatized family structures are demonstrably inadequate. Research shows that children are often safer in formal child care

settings than at home, undermining the assumption that biological parents are inherently the best caregivers (Waldfoegel, 2006 as referenced by Gheaus, *Domination* 761). Gheaus notes that privatized family structures increase the risk of abuse and neglect, as isolating caregiving responsibilities within a nuclear family can concentrate power and limit accountability (Gheaus, *Domination* 749).

hooks argues a stronger claim, asserting that communal caregiving fosters a collective drive to ensure children's well-being, which can rival or even surpass the motivation of individual biological parents (hooks 135). While some might worry that sharing caregiving responsibilities could discourage individuals from forming emotional attachments to children, Gheaus counters that such fears are rare exceptions. Family love and intimacy, she observes, often thrive in non-exclusive caregiving arrangements, just as love between siblings or within friendships flourishes (Gheaus, *Domination* 761).

Motivation must be reimagined through acceptance, rather than causality. Brake's voluntarist account argues parental duties should arise from a deliberate and intentional acceptance of the caregiving role (Brake, *Willing Parents* 153). Judith Jarvis Thomson reinforces the notion that causal responsibility does not automatically generate moral responsibility. She argues that parental obligations arise only when one has explicitly or implicitly assumed them: "Surely we do not have any such 'special responsibility' for a person unless we have assumed it, explicitly or implicitly" (65) (Brake, *Fatherhood* 58, see note 65). For example, parents who intentionally decide not to prevent a pregnancy, forgo adoption, and take the child home have voluntarily assumed responsibility. Without such actions, causation alone does not suffice to impose moral duties. Communal caregiving reframes motivation as the need to keep children safe and accept the duty of proving love.

III. Implications

Effective communal caregiving necessitates a fundamental shift of societal attitudes, structures, and institutions. hooks argues that “women and men must revolutionize their consciousness” and embraces the idea that parenting in isolation is not the most effective way to raise children (hooks 146). Shared responsibility is essential for the well-being of both the child and the caregiver. hooks writes, “this form of parenting is revolutionary in this society because it takes place in opposition to the idea that parents, especially mothers, should be the only childrearsers” (hooks 144). A communal system could mitigate inequalities that arise from isolating caregiving within individual families

If we truly accept that children have a fundamental right to be loved, it becomes clear that this obligation cannot fall primarily or exclusively on biological parents. This is not a new idea: communal caregiving systems, seen in societies with extended networks and collective child-rearing traditions, demonstrate the feasibility of shared responsibility. Even in a more contemporary context, hooks highlights the lived experience of Black communities where collective parenting ensures children’s needs are met when formal care systems were inaccessible (hooks 144).

In a communal model, caregiving is reframed as a collective moral responsibility, distributed among those who are willing and capable. In the practical sense, the “shared responsibility for child care can happen in small community settings where people know and trust one another,” in an environment where children develop meaningful and reliable relationships with multiple caregivers (hooks 144). It would likely require expanding and investing in communal institutions. Also, communal caregiving reimagines adoption and foster

care systems. Adoption would become less about finding a new family, reducing the stigma associated with adoption by showing children's needs take precedence over rigid family structures. Additionally, communal caregiving has the potential to redefine how society values caregiving itself. This might mean challenging cultural norms that treat children as extensions of their parents, redefining relationships to show that love and care do not need to be exclusive to be meaningful, and fostering instead a societal ethic that views children's well-being as a collective priority.

IV. Conclusion: The Duty to Love as a Communal Obligation

In conclusion, while Liao's causal account of responsibility provides a starting point, it is ultimately inadequate for addressing the complexities of child-rearing in contemporary society. Responsibility should not be confined to a causal link between parent and child, but instead, should be understood as a communal obligation shared among willing, capable individuals. This model of shared caregiving not only better meets the needs of children but also aligns with a more inclusive and adaptable understanding of responsibility, reflecting the relational nature of caregiving and ensuring that every child's right to be loved is fulfilled.

Liao's framework for assigning the duty to love—causal responsibility, proximity, ability, and motivation—provides a compelling foundation for understanding who should fulfill a child's right to be loved. However, his conclusion that biological parents are the primary duty bearers is overly narrow and fails to account for the complexities of caregiving in modern social contexts.

Ultimately, the duty to love a child is not an exclusive obligation but a shared one. A dual model, incorporating both parents and community members, ensures that children's right to be loved is upheld consistently and equitably. This approach not only reflects moral and practical

realities but also enriches the caregiving experience, empowering children to thrive within a supportive and interconnected social framework. Through this reimagined framework, love is not confined to the family—it is a communal act of care and responsibility.

Works Cited

- Brake, Elizabeth, '7 Willing Parents: A Voluntarist Account of Parental Role Obligations', in David Archard, and David Benatar (eds), *Procreation and Parenthood: The Ethics of Bearing and Rearing Children* (Oxford, 2010; online edn, Oxford Academic, 1 Jan. 2011), <https://doi.org/10.1093/acprof:oso/9780199590704.003.0007>, accessed 13 Dec. 2024.
- Brake, Elizabeth. "Fatherhood and child support: Do men have a right to choose?" *Journal of Applied Philosophy*, vol. 22, no. 1, Mar. 2005, pp. 55–73, <https://doi.org/10.1111/j.1468-5930.2005.00292.x>.
- Gheaus, Anca. "Child-rearing with minimal domination: A Republican account." *Political Studies*, vol. 69, no. 3, 27 Jan. 2020, pp. 748–766, <https://doi.org/10.1177/0032321720906768>.
- Gheaus, Anca. "Childhood: Value and duties." *Philosophy Compass*, vol. 16, Nov. 2021, pp. 1–11, <https://doi.org/10.1111/phc3.12793>.
- Hooks, Bell. "Revolutionary Parenting." *Feminist Theory: From Margin to Center*, South End Press, Boston, Massachusetts, 1984, pp. 133–146.
- Liao, S. Matthew. "Being Loved as a Fundamental Condition for Children." *The Right to Be Loved*, Oxford University Press, pp. 74–100.
- Liao, S. Matthew. "The Duty to Love: Who Has It and to What Extent?" *The Right to Be Loved*, Oxford University Press USA, New York, 2015, pp. 131–150.
- Shelby, Tommie. "Family." *Dark Ghettos: Injustice, Dissent, and Reform*, Harvard University Press, Cambridge, Massachusetts, 2016, pp. 142–174.